

2016 M L D 963

[Lahore]

Before Masud Abid Naqvi, J

DILAWAR KHAN---Petitioner

Versus

ALI NAWAZ and others---Respondents

C.R. No.1000 of 2010, decided on 1st December, 2015.

(a) Malicious prosecution---

----Suit for damages---Prosecution of a criminal offence---Plaintiff filed suit for damages on the ground that he was acquitted of the charge in complaint case lodged by the defendant---Suit for damages was decreed concurrently---Validity---Plaintiff had not stated with regard to reputation or mental agony and the damages suffered by him--
-Plaintiff was bound to prove not only the prosecution but also the other ingredients for grant of damages---Acquittal of plaintiff was based on withdrawal of complaint by the defendant on the basis of compromise---Initial burden of proof was on the plaintiff to substantiate his claim (s) by adducing cogent, legal, relevant and unimpeachable evidence of definitiveness---Plaintiff had failed to establish/substantiate/prove his claim of damages---Impugned judgments were without reasoning as required for grant of a decree for compensation for mental/physical torture or disrepute suffered at the hands of complainant---Said judgments and decrees were result of mis-reading and non-reading of evidence which were set aside by High Court.

(b) Malicious prosecution---

----Elements to be taken into consideration---Plaintiff must establish for a decree for malicious prosecution that he/she was prosecuted by the defendant with malice; that prosecution ended in his/her favour; that defendant acted without reasonable and probable cause; that proceedings had interfered with his/her liberty and that same had affected his/her reputation and plaintiff had suffered damage.

Mian Tariq Hussain for Petitioner.

Respondents proceeded against ex parte on 22-10-2015.

ORDER

MASUD ABID NAQVI, J.---Through this order, I intend to decide instant civil revision along with connected Civil Revision Nos. 959, 960, 1001 of 2010 involving

common questions of law and facts.

2. Brief facts of the case are that the petitioner filed a private complaint against Nazar Muhammad, Ali Nawaz, Muhammad Javed and Mohammad Nawaz under sections 506 and 354, P.P.C. in the court of Illaqa Magistrate alleging that the respondents threatened him and tore clothes of his sister. All the accused were summoned and they contested the complaint and later on the complaint was dismissed as withdrawn vide order dated 21.06.2003 as the petitioner made a statement in the court that compromise had been affected between the parties. The respondents/accused filed a revision petition against the said order wherein the accused/respondents were acquitted vide judgment dated 27.09.2003. Whereafter, said respondents/accused of the complaint filed four separate suits for recovery of damages amounting to Rs.24900/- each on the basis of malicious prosecution against Dilawar Khan and others. The suits were duly contested by the defendants by filing written statement of the same wherein they raised legal as well as factual objections. Out of divergent pleadings of the parties, issues were framed and parties led their respective oral and documentary evidence. After hearing the arguments advanced by both the parties, the learned trial court decreed the suits vide judgment and decree dated 20.11.2009 to the extent of Rs.15000/- each against only Dilawar Khan/petitioner while the suits were dismissed against other defendants. Dilawar Khan/ petitioner/complainant filed four separate appeals and the respondents/plaintiffs filed cross objection Nos.53-13, 52-13, 54-13 and 51-13 of 2009. However, all the four appeals and cross objections were dismissed by the learned District Judge Toba Tek Singh vide judgment dated 28.01.2010. Being dissatisfied with the judgments and decrees of learned courts below, the petitioner/defendant has filed the instant revision petition and challenged the validity thereof.

3. I have heard the arguments of the learned counsel for the petitioner who reiterated his arguments as well as have minutely gone through both the impugned judgments and decrees.

4. In a suit for damages, following factors/ingredients must be established by the plaintiff before a decree for malicious prosecution can be awarded to him:--

- (i) that the plaintiff was prosecuted by the defendant;
- (ii) that the prosecution ended in plaintiff's favour;
- (iii) that the defendant acted without reasonable and probable cause;
- (iv) that the defendant was actuated by malice;
- (v) that the proceedings had interfered with plaintiff's liberty and had also affected his/her reputation; and finally;
- (vi) that the plaintiff had suffered damage.

Perusal of record reveals that onus to prove issue No.1 lies on the plaintiff and in order to prove the issue No.1 and abovementioned basic ingredients for the grant of

damages, the respondent No.1 appeared and deposed as PW-1 while Mst Akbari Bibi appeared as PW-2. By bare scanning of the evidence of the respondent No.1/plaintiff, it reveals that although the respondent No.1/plaintiff stated that the proceedings affected his reputation and caused mental agony and damages to him but Mst Akbari Bibi/ PW-2 failed to utter a single word about the reputation of plaintiff or the mental agony and the damages, suffered by the respondent No.1/plaintiff. In a suit for malicious prosecution, it is incumbent on the plaintiff to prove not only the prosecution but also the other abovementioned factors/ingredients for the grant of damages. Even otherwise, the acquittal of the accused/respondents/ plaintiffs is based on the withdrawal of the complaint by the complainant on the basis of compromise. It is a well-settled law that the initial burden of proof is on the plaintiff to substantiate his claim(s) by adducing cogent, legal, relevant and unimpeachable evidence of definitiveness. Testing the case in hand, at the touchstone of the abovementioned settled law, I feel no hesitation in holding that the plaintiff has miserably failed to establish/substantiate/prove his claim of damages. The impugned judgments and decrees are not only imaginary but also lack reasoning, required for grant of a decree as compensation for the mental/physical torture or disrepute suffered at the hands of the complainant/petitioner.

5. In view of the foregoing comprehensive discussion, petitioner has successfully made out a case for interference. Accordingly, it is observed that the impugned judgments and decrees of learned court below are the result of misreading and non-reading of material evidence placed on record, which are not sustainable at law and the same are accordingly set aside and suits of plaintiffs/respondents are dismissed. Resultantly, this Civil revision is accepted.

ZC/D-2/L Revision allowed.